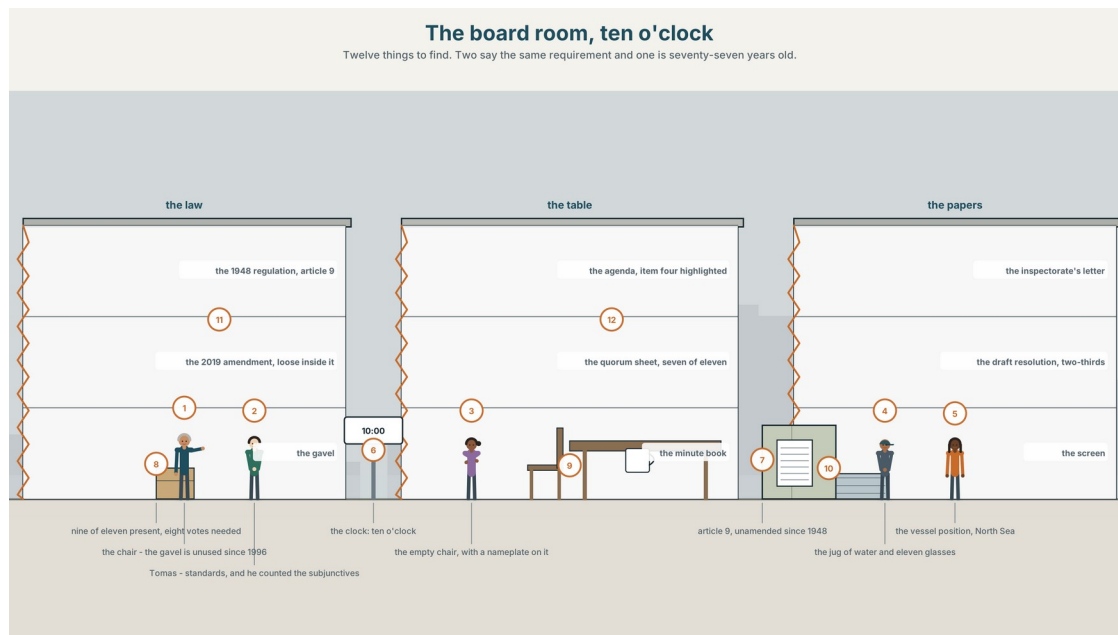


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B2.2 • Unit 5 • That He Be Present

English Animated • *Holding the Floor* • a port and its logistics chain, Rotterdam Student's
Book pages 94–115 • 22 pp • ~11 hours

Part 0 • The Big Picture ♦ A • THE WORLD



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6in}

The board room, ten o'clock — Twelve things to find. Two say the same requirement and one is seventy-seven years old.

Is it essential that he *be* here?

By the end of this unit you can write and recognise high formality, and say which of its requirements are real. Two hundred words.

♦ A • THE WORLD

♦ B • THE SYSTEM

A regulation from 1948, a
harbourmaster at sea, and eleven
people deciding whether *be present*
is a rule

the subjunctive and the formal
structures around it • 28 words for
protocol and compliance • 22
formulaic adjectives and frames • the
stress inside a formula

◆ A • THE WORLD

A regulation from 1948, a
harbourmaster at sea, and eleven
people deciding whether *be present*
is a rule

◆ C • THE PERFORMANCE

Two hundred words at a level of
formality you chose

0A • Find it

Find twelve things in this picture. Two of them say the same requirement and one of them is seventy-seven years old.

the 1948 regulation, open at article 9 · the 2019 amendment, loose inside it · the agenda, item four highlighted · the quorum sheet, seven of eleven · the chair's gavel, unused since 1996 · an empty chair with a nameplate · the inspectorate's letter · the draft resolution, two-thirds required · a jug of water and eleven glasses · a clock at 10.00 · a screen showing a vessel position, North Sea · a minute book, handwritten

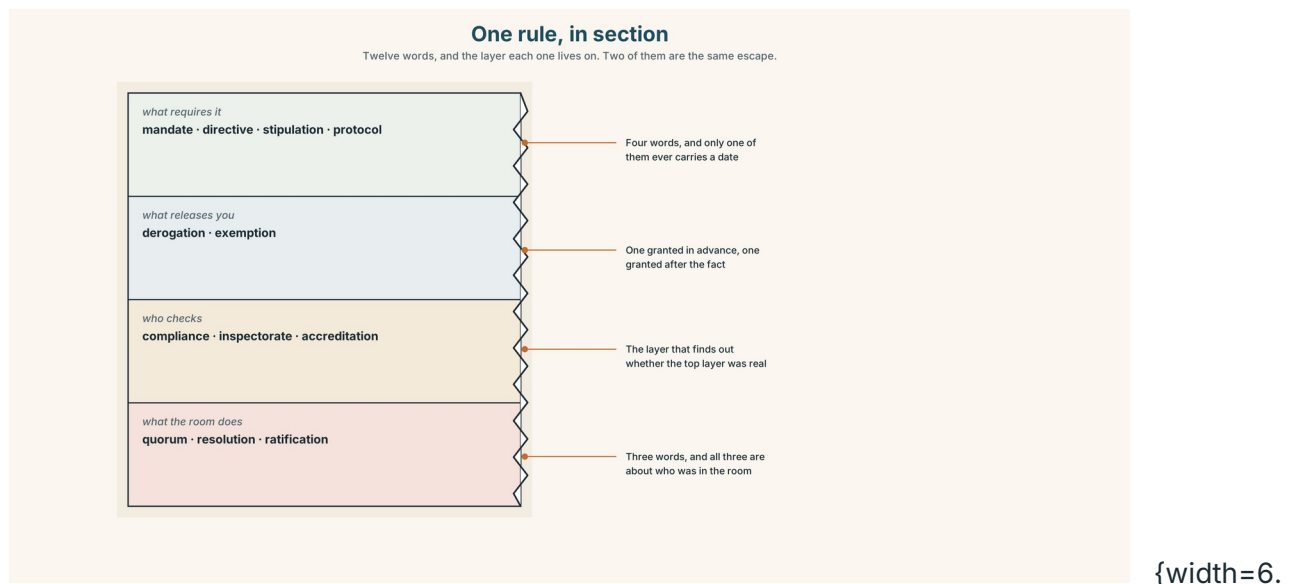
0B • Guess it

One object in this room makes another one unnecessary, and nobody in the room agrees which way round. Which two?

0C • Say it

Record sixty seconds. *State a rule from your own workplace or college as formally as you can, and then say whether anybody has ever enforced it.* You will record it again at the end of this unit.

Part 1 • Vocabulary Lab 1 ◆ B • THE SYSTEM



6in}

One rule, in section — Twelve words, and the layer each one lives on. Two of them are the same escape.

1A • Meet — the words of a rule

Match each word to one layer of the cutaway.

mandate · directive · stipulation · protocol · compliance · derogation · exemption ·
inspectorate · ratification · accreditation · quorum · resolution

1B • Sort — the rule, the escape, the checking, or the meeting?

Four columns. **Two of the twelve are the same escape: one granted in advance, one granted after the fact.**

mandate · derogation · compliance · quorum · directive · exemption · inspectorate · resolution
· stipulation · accreditation · protocol · ratification

1C • Meet — the five phrases a board runs on

due process	Not that the right answer was reached, but that the right steps were taken.
the chair's ruling	A decision about the meeting itself, which cannot be appealed in the room.
a point of order	An objection about procedure, which outranks whatever was being said.
a binding undertaking	A promise with a remedy attached. Without the remedy it is a letter.
the minimum standard	The floor. Everybody treats it as the target, which is the known failure.

1D • Collocation Lab

Complete each one, and say which of the five has a date in it.

**a formal requirement · with immediate effect · subject to approval · in accordance with ·
an inspection regime**

- Article 9 states _____ that the harbourmaster be present.
- The new regime takes effect _____, which means before the minute is signed.
- Everything agreed this morning is _____ by the inspectorate.
- The vessel was cleared _____ the 2019 amendment, not the 1948 text.
- _____ covering three hundred and forty calls a month begins in April.

1E • The phrasal verbs, and the three fixed expressions

put forward · carry out · abide by

f the chair rules that · f I move that · f be it resolved

One of these fixed expressions can be said by anybody in the room and two cannot. Which, and what does that tell you about who owns a meeting?

1F • Own it

Write one rule you follow at work or college, once as a requirement and once as a recommendation, and say which one it actually is.

Part 2 • Listening ♦ A • THE WORLD

Item four, ten o'clock
Nine of eleven present. Eight votes needed. The harbourmaster is at sea.

It is essential that he be present.
Be it resolved.

Nobody has tested this article since 1961.

the chair
the gavel has not been used since 1996

Were he to attend remotely, the article would be satisfied.
Far be it from me.

Twenty-five rules kept by accident for seventy-seven years.

Tomas
thirty-one subjunctives, six ever enforced

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6in}

Item four, ten o'clock — Nine of eleven present. Eight votes needed. The harbourmaster is at sea.

2A • Ten o'clock, item four 🎧 Track 5.1

Before you listen. Article 9 of the 1948 regulation says *it is essential that the harbourmaster be present*. The harbourmaster is on a vessel in the North Sea. Eight of eleven members are needed to pass the resolution, and nine are in the room.

Listen once. What is the question before the board, and what does each side say the regulation means?

Listen again. Complete the table.

	What they say article 9 requires	What they propose	What it costs
the chair			
the standards officer			
the inspectorate's letter			

Listen again. True or false?

1. Nine members are in the room. ☐ T ☐ F
2. The resolution needs eight votes. ☐ T ☐ F

3. The regulation was amended in 2019. ☐ T ☐ F
4. The amendment mentions remote attendance. ☐ T ☐ F

Noticing. Six sentences from the recording.

1. *It is essential that he be present.*
2. *It is essential that he is present.*
3. *It is essential for him to be present.*
4. *The regulation requires that he be present.*
5. *We recommend that he be present.*
6. *Were he to attend remotely, the article would be satisfied.*

Six sentences, one verb form shared by three of them. Find the three, and say which two of the six are not requirements at all.

2B • Decoding clinic 🎧 Track 5.2

Thirty seconds at speed. Three jobs.

1. The chair says *be it resolved* twice. Write what you hear.
 2. Which syllable carries the stress in *it is essential that*, said at speed?
 3. Somebody says *far be it from me*. What follows it, every time?
-

Part 3 • Grammar Lab 1 ♦ B • THE SYSTEM

The form that has no tense

3A • Notice

Look at the six sentences in Part 2 again.

1. In sentence 1, what is unusual about the verb after *that*?
2. Sentence 2 uses an ordinary present. **Does it mean the same thing?**
3. Sentence 5 has the same structure as sentence 4. **Does it have the same force?**
4. Sentence 6 begins with a verb. **What has been removed from the front of it?**

3B • See

The form with no tense

The same clause, twice. One of them agrees with its subject and one refuses to.

PRESENT	It is essential	that	he	is present
no -s, no tense, no number: the form is about a state of affairs, not a moment				
SUBJUNCTIVE	It is essential	that	he	be present

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6in}

The form with no tense — The same clause, twice. One of them agrees with its subject and one refuses to.

3C • Know

the mandative subjunctive	base form after <i>that</i> , no -s, no tense	...that he be present
the adjectives that take it	<i>essential</i> · <i>imperative</i> · <i>vital</i> · <i>requisite</i>	<i>It is essential that he be...</i>
the verbs that take it	<i>require</i> · <i>recommend</i> · <i>propose</i> · <i>insist</i> · <i>demand</i>	<i>The regulation requires that he be...</i>
the negative	<i>not</i> goes before the verb, with no <i>do</i>	...that he not be present
the <i>lest</i> clause	formal, and subjunctive by definition	<i>lest it be thought that...</i>
inversion for the conditional	<i>were</i> , <i>should</i> and <i>had</i> replace <i>if</i>	<i>Were he to attend</i> · <i>Should it prove</i>

The subjunctive carries no tense and no number, and that is the point. *That he be present* is about a state of affairs, not about a moment. It is why the form survives in regulations and has almost vanished from speech, and why a reader who meets it has to work out from context whether anybody is required to do anything.

Formality is not the same as force. *We recommend that he be present* and *The regulation requires that he be present* share a verb form and share nothing else. The subjunctive tells you the register; the matrix verb tells you whether you have to.

the adjectives, by force	<i>essential</i> · <i>imperative</i> · <i>vital</i> — <i>absolute</i> · <i>mandatory</i> · <i>obligatory</i> · <i>requisite</i> — written into a rule · <i>advisable</i> · <i>desirable</i> — recommended
the frames	<i>it is essential that</i> · <i>it is imperative that</i> · <i>we recommend that</i> · <i>it is proposed that</i> · <i>the regulation requires that</i>
the inverted conditionals	<i>were it to</i> · <i>should it prove</i> · <i>had it been</i>
what people do with rules	<i>insist on</i> · <i>call for</i> · <i>see to it</i> · <i>abide by</i> · <i>carry out</i>

Why it matters. Half the requirements in any regulation are not requirements. Telling the two apart is the difference between a document that governs anything and a document nobody can comply with, and the signal is in three words at the front of each sentence.

3D • Use — controlled

Complete each one in the subjunctive.

It is essential that the harbourmaster (1) _____ (be) present. The regulation requires that the vessel (2) _____ (not depart) before clearance. We recommend that the board (3) _____

(seek) a derogation. It is proposed that article 9 (4) _____ (be) amended. (5) _____ he to attend remotely, the article would be satisfied. (*inversion*)

3E • Use — guided

Rewrite each one at the formality in brackets, keeping the force.

1. He has to be there. (*highest formality*)
2. The vessel must not leave before clearance. (*a regulation's wording*)
3. We think the board should ask for a derogation. (*a recommendation, formal*)
4. If he attends remotely, the article is satisfied. (*inverted conditional*)
5. Somebody should check that this is done. (*a formal fixed expression*)

3F • Use — open

In pairs. One of you states a workplace rule informally. The other restates it in the highest formality they can manage, **and then says whether the force changed**. Six rounds each.

3G • Error autopsy

- × *It is essential that he is be present.* × *The regulation requires that he doesn't be present.*
- × *Were he attends remotely, the article would be satisfied.*

For each, name the rule and say what the writer was reaching for.

3H • Check — eight items

1. It is essential that he _____ present. (*one word*)
 2. The regulation requires that the vessel _____ before clearance. (*two words*)
 3. We recommend that the board _____ a derogation. (*one word*)
 4. It is proposed that article 9 _____ amended. (*one word*)
 5. _____ he to attend remotely, the article would be satisfied. (*one word*)
 6. × *The regulation requires that he doesn't be present.* → correct it.
 7. Rewrite *He has to be there* at the highest formality you can.
 8. Write one sentence in which the subjunctive appears and nothing is required.
-

Part 4 • Speaking ♦ C • THE PERFORMANCE

4A • Fluency starter — raise it one level

One person states a rule in plain English. Each person in turn raises the formality by one step. **The round ends when somebody produces a sentence nobody in the room would say out loud.**

4B • The functional core — using high formality

The same requirement, two regulations
Article 9 of 1948 and the amendment of 2019, on the same shelf.

article 9, 1948

subjunctive · no consequence · no deputy · unamended

the 2019 amendment

shall · a consequence · a deputy, in writing · 28 days

Find the six. One of the two tells a reader what happens if they do not comply. Which, and in how many words?

6 differences — find them all

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The same requirement, two regulations — Article 9 of 1948 and the amendment of 2019, on the same shelf.

Language Bank

requiring	<i>it is essential that · it is imperative that · the regulation requires that</i>
recommending	<i>we recommend that · it is proposed that · it is advisable that</i>
conditioning	<i>were it to · should it prove · lest it be</i>
running the room	<i>I move that · the chair rules that · a point of order · be it resolved</i>

Information gap. Learner A has the 1948 article. Learner B has the 2019 amendment. **Decide together whether the board may proceed, and draft the minute.** Ten minutes.

4C • The performance — three minutes

Chair a three-minute item. **You must use one subjunctive, one inverted conditional and one procedural formula**, and your partner must be able to say afterwards what was required and what was advised.

Record it.

4D • Observer

One person writes down every requirement stated and marks it absolute, written-in or recommended.

4E • Three criteria

- ☐ Did the register stay high for the whole item? ☐ Could anybody tell, from my words alone, what was mandatory? ☐ Did I use the subjunctive where it belonged and nowhere else?

Part 5 • Reading ♦ A • THE WORLD

5A • Predict

The title is "**Thirty-one requirements, six enforced.**" If a rule has never been enforced, is it a rule?

5B • Read — two minutes

Thirty-one requirements, six enforced

Article 9 of the port regulation of 1948 provides that it is essential that the harbourmaster be present at any meeting at which an inspection regime is ratified. The article was not amended in 2019, when the rest of the regulation was. The harbourmaster is at sea.

Nine of eleven board members are present. Eight votes are required. On the face of it the resolution can pass and the article cannot be satisfied.

A review commissioned afterwards found that the regulation contains two hundred and fourteen requirements. Thirty-one of them use the subjunctive. Of those thirty-one, six have ever been enforced, and four of the six are the ones that also appear in the 2019 amendment, where they are written with *shall*.

The remaining twenty-five have been complied with by accident, in most cases, for seventy-seven years. Nobody has ever sought a derogation from any of them, because nobody was certain they were requirements, and asking would have settled the question.

The review's own recommendation is written as *it is recommended that article 9 be amended*. The board has not yet decided whether that sentence requires anything.

5C • Comprehension — eight questions

1. What does article 9 provide, and when was it written?
2. How many members are present, and how many votes are needed?
3. How many requirements does the regulation contain, and how many use the subjunctive?
4. How many of those have been enforced?
5. What is written with *shall* in the 2019 amendment?
6. **"Complied with by accident." What does the writer mean, and why is that worse than being broken?**
7. **Why would asking for a derogation have settled the question?**
8. **The last sentence is a joke that is also the point. Explain both.**

5D • Vocabulary in context

Infer from the text, then check.

provides that • on the face of it • complied with by accident • sought a derogation • settled the question

5E • The counter-text

Article 9, every requirement weighed

Two hundred and fourteen requirements, thirty-one subjunctives, six ever enforced.

PORT REGULATION 1948 - ARTICLE 9 - WITH 2019 AMENDMENT

1948: "It is essential that the harbourmaster be present at any meeting at which an inspection regime is ratified. It is advisable that notice be given."

2019: "The harbourmaster shall attend or shall appoint a deputy in writing. Failing attendance or appointment, the ratification shall be void."

IN THE REGULATION	COUNT	ENFORCED
REQUIREMENTS IN TOTAL	214	--
USING THE SUBJUNCTIVE	31	6
ALSO IN THE 2019 TEXT	4	4
NEVER TESTED	25	0
DEROGATIONS SOUGHT SINCE 1961	0	--
ARTICLE 9: REQUIREMENTS	2	0
ARTICLE 9: CONSEQUENCES STATED	0	--
2019: CONSEQUENCES STATED	1	--

WHAT EACH SENTENCE ACTUALLY REQUIRES

"It is essential that ... be"	absolute in tone, untested in fact
"It is advisable that ... be"	same verb form, no force at all
"shall attend"	written-in, with a consequence
"shall be void"	the only sentence here a court could use

Two sentences in article 9 share a verb form and share nothing else. The 2019 text uses one verb form for both and says which is which.

Two requirements, one verb form, two different forces

A consequence, in eleven words, and article 9 has none

Twenty-five rules kept by accident for seventy-seven years

The subjunctive marks the register and not the force

Only the last line could be used by anybody

6in}

Article 9, every requirement weighed — Two hundred and fourteen requirements, thirty-one subjunctives, six ever enforced.

Read article 9 and the 2019 amendment, and answer.

1. How many requirements are in article 9, and which verb form does each use?
2. **Find every sentence in the amendment that uses *shall*, and say whether it replaces a subjunctive.**
3. One sentence in article 9 looks mandatory and is not. **Which, and what gives it away?**
4. **Rewrite article 9 so that a reader can tell, in each sentence, whether they must or should.**

5F • Two texts

Article 9 says *it is essential that the harbourmaster be present*. The 2019 amendment says *the harbourmaster shall attend or appoint a deputy in writing*.

Do these say the same thing? Write two sentences, and use the word *derogation* in one of them.

Part 6 • Vocabulary Lab 2 ♦ B • THE SYSTEM

Words that say how much you have to

6A • Sort — absolute, written into a rule, or recommended?

Three columns.

essential · mandatory · advisable · imperative · obligatory · desirable · vital · requisite

6B • Chunk completion

1. _____ he be present. (*four words*)
2. _____ the vessel not depart. (*four words — stronger still*)
3. _____ the board seek a derogation. (*three words*)
4. _____ the deputy be appointed in writing. (*four words*)
5. _____ thought that the article is a formality. (*two words*)
6. _____ attend remotely, the article would be satisfied. (*three words*)
7. _____ impossible, the meeting shall be adjourned. (*three words*)
8. _____ article 9 be amended. (*four words*)

6C • Three that are not interchangeable

essential · mandatory · advisable

Say which one is a judgement, which one is a fact about a document, and which one commits nobody to anything.

6D • The phrasal verbs and the fixed expressions

insist on · call for · see to it

f *be that as it may · f* *far be it from me · f* *come what may*

One of these fixed expressions is always followed by exactly the thing it disclaims. Which, and why does everybody in the room know it?

6E • Contrast Clinic

Eight items. Rewrite each one as the bracket asks.

1. He has to be there. (*highest formality*)
 2. The vessel must not leave before clearance. (*a regulation's wording*)
 3. We think the board should ask for a derogation. (*formal recommendation*)
 4. If he attends remotely, the article is satisfied. (*inverted conditional*)
 5. Somebody should make sure this happens. (*a three-word phrasal verb*)
 6. In case anybody thinks this is a formality. (*a formal two-word opener*)
 7. If it turns out to be impossible, adjourn. (*inverted, formal*)
 8. We suggest changing article 9. (*formal, with the subjunctive*)
-

Part 7 • Pronunciation & Fluency Lab ♦ B • THE SYSTEM

A formula is one word long Written in full above, said at a third of the length below.		
be it resolved	→	bi: ɪt rɪ'zɒlvd one stress, at the end
the chair rules that	→	ðə 'tʃeə ru:lz ðæt one stress, at the front
it is essential that	→	ɪts ɪ'senʃl, ðæt four words, two syllables of content
far be it from me	→	'fɑ: bi:t frəm 'mi: and what follows is always exactly that
come what may	→	kʌm wɒt 'meɪ three words, one beat, no tense anywhere

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6in}

A formula is one word long — Written in full above, said at a third of the length below.

A formula is one word long

7A • Hear Track 5.3

Be it resolved → /bi: ɪt rɪ'zɒlvd/ — one stress, at the end *The chair rules that* → /ðə 'tʃeə ru:lz ðæt/ — one stress, at the front *It is essential that* → /ɪts ɪ'senʃl ðæt/ — four words, two syllables of content

7B • Say

Say each three times, fast. Then say this:

It is essential that he be present — far be it from me to suggest otherwise. — two formulae and one real claim, and the formulae take less time than the claim.

7C • Make it mean something

Say these two:

It is esSENTial that he be present. — the formula, said at speed: a requirement is being quoted *It is ESSENTIAL that he be present.* — the stress moved onto the adjective: and somebody has just said it is not

A formula said with its ordinary stress is a citation; stress any word inside it and you have started an argument. This is why procedural language sounds flat: flatness is how you signal that you are quoting the rule rather than making it.

7D • Fluency 30

Thirty seconds: **four formulae at speed, then the same four with one word stressed in each.** Three times, faster.

Part 8 • Writing ♦ C • THE PERFORMANCE

A minute, at the formality it needs • 200 words

8A • Read the model

The chair ruled that item four be taken in the absence of the harbourmaster. [the subjunctive after a ruling verb: this is the register the minute book has used since 1948]

It was noted that article 9 of the regulation of 1948 provides that it is essential that the harbourmaster be present, and that the article was not amended in 2019. [two subjunctives in one sentence, one quoted and one reported, and the date of the amendment doing the work of an argument]

Were a derogation to be sought, the inspectorate would require the request in writing within twenty-eight days; should it be refused, the ratification would fall. [two inverted conditionals, which is the formal register's way of saying "if" without saying it twice]

It was resolved, nine members being present and eight votes required, that the regulation be ratified, that the absence be recorded, and that a derogation be sought with immediate effect. [three subjunctives in parallel after one matrix verb, which is the shape of every resolution ever written]

Questions about the writer's choices:

1. The second sentence quotes a subjunctive inside a reported one. **Why not paraphrase it?**
2. Two inverted conditionals in one sentence. **What would if twice have sounded like?**
3. The last sentence has three parallel subjunctives. **What does the parallelism buy a reader?**

8B • The anti-model

The chair said we should probably just go ahead since the harbourmaster isn't here and it's essential he's here but he can't be, so if the inspectorate says no we'll have to look at it again, and anyway it's never been enforced.

One sentence, forty-four words, two contractions, one *anyway*, and a requirement reported as an opinion. **Rewrite it as a minute, with the force of each requirement visible.**

8C • Plan

the ruling, in the subjunctive → the article quoted, with its date → the conditionals, inverted → the resolution, three parallel subjunctives

8D • Write — 200 words

8E • Peer review — three criteria

☐ Is every requirement marked as absolute, written-in or recommended? ☐ Does the register stay level, or does it drop in the middle? ☐ Is every subjunctive after a verb or adjective that licenses one?

8F • Write it again • 8G • Publish

Rewrite after review. **Publish both, and mark every subjunctive and what licenses it.**

Part 9 • The File ♦ A • THE WORLD + C • THE PERFORMANCE

Four sentences that start formal and do not stay

Formal English learned as vocabulary and used as grammar.

STUDY FILE - THE FORMALITY YOU CAN READ AND NOT WRITE

You recognise all of this and produce it in two registers at once. The result reads as translated, which it usually is not.

WHAT WAS WRITTEN	WHAT DROPPED IT	THE WHOLE FORMULA
IT IS ESSENTIAL THAT HE COMES	THE -S	THAT HE COME
WE RECOMMEND THAT HE WILL GO	THE WILL	THAT HE GO
IF HE WOULD ATTEND, IT IS OK	WOULD + OK	WERE HE TO ATTEND
IT IS NECESSARY HE IS THERE	NO THAT	THAT HE BE THERE
...AND ANYWAY WE THINK SO	ANYWAY	IT IS SUBMITTED THAT

WHY EIGHT FORMULAE AND NOT A RULE

a rule has to be applied

a formula is retrieved

eight is enough

the test

and application is slow under pressure

whole, with its verb form attached

for a minute, a letter and a submission

can you say it without pausing before the verb?

Translate three requirements from a real regulation in your own language and mark each one absolute, written-in or recommended.

Nothing here is unintelligible. All of it is mixed

Five sentences, and four of them fail at the verb

A formula is retrieved; a rule has to be applied

The pause before the verb is the whole diagnosis

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6in}

Four sentences that start formal and do not stay — Formal English learned as vocabulary and used as grammar.

STUDY FILE • The formality you can recognise and not produce

9A • Reading it and writing it 🎧 Track 5.4

Most learners at this level read formal English comfortably and produce it in two registers at once: a formal opening, a neutral middle, and a phrase from a textbook dropped in at the end. The result reads as translated, which it usually is not.

what you produce	<i>It is essential that he comes.</i> <i>Anyway, we think...</i>
what gives it away	the ordinary present, and <i>anyway</i>
why	formal English is learned as vocabulary and used as grammar
the fix	eight formulae, learned whole, with their verb forms attached

9B • Learn eight whole

Choose **eight** formulae from this unit. **Write one true sentence with each, about your own field,** and keep the verb form that belongs to it.

9C • Role play — raise it one level

In pairs. One of you says a sentence in neutral English. The other raises it one level of formality, **changing exactly one thing. Eight rounds each.**

9D • The one you drop in

Everybody has one formal phrase they use in the wrong place. **Find yours.** It is usually *moreover*, *hence*, or *in my humble opinion*.

9E • Transfer — before next week

Find a real regulation or policy in your own language and translate three requirements into English, marking each one absolute, written-in or recommended. Bring both versions.

Part 10 • Mediation & Interaction ♦ C • THE PERFORMANCE



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6in}

Two hundred and fourteen requirements, six enforced — What the regulation says, what has ever been tested, and what the amendment rewrote.

10A • Relay

Half the class has article 9. Half has the 2019 amendment and the inspectorate's letter. **Decide whether the board may proceed, by speaking only.** Ten minutes.

10B • Simplify — for one reader

A new board member writes: *Which of these do I actually have to do?* **Reply in four sentences**, sorting the requirements into must, should and never-enforced.

10C • Online

Write **one message** to the inspectorate requesting a derogation. **Three sentences**, in the register of the document you are asking about.

10D • Your language

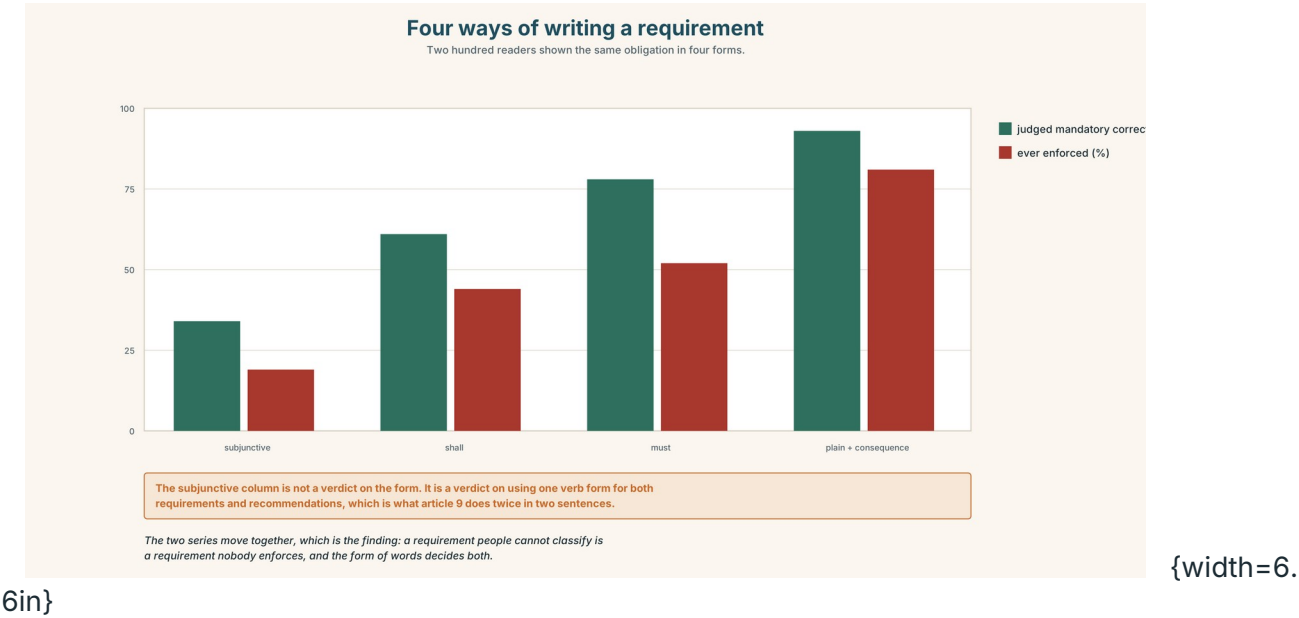
Does your language have a subjunctive, and is it alive? **Translate all six sentences from Part 2.** Which two become identical, and what is lost?

Part 11 • The Decision ♦ C • THE PERFORMANCE

Item four

- Option one:** adjourn. *Be present* is a subjunctive in a regulation, not a preference, and a ratification taken in breach of article 9 can be challenged for as long as the regime lasts.
- Option two:** proceed. The article has never been enforced, the harbourmaster can ratify in writing afterwards, and the regime starts in April either way.
- Option three:** proceed, record the absence in the minute, and seek a formal derogation covering remote attendance, with a sunset date and a review.

11A • The evidence



Four ways of writing a requirement — Two hundred readers shown the same obligation in four forms.

Track 5.6. Tomas Brink, standards, 30 seconds: "Twenty-five requirements that nobody has ever tested. That is not a compliance record, it is a coin that has not been flipped. The dangerous ones are not the rules we break; they are the rules we keep by accident, because the day we cannot keep one, we will discover whether it was a rule at the same moment as everybody else."

11B • Talk about it

In threes. Use the frame, and use one subjunctive per turn.

I move that _____, on the ground that _____. Were it to _____, I would _____.

11C • Decide

Write **three sentences**: the decision, the evidence, and the resolution as you would minute it.

11D • Model decision

Option three. Adjourning treats a seventy-seven-year-old sentence as settled law when nobody in the building knows whether it is, and proceeding quietly leaves the same question open for another seventy-seven years. The derogation request is the only option that produces an answer: the inspectorate must either grant it, which makes article 9 a requirement with a known escape, or refuse it, which tells us it is one. Either reply is worth more than the regime.

11E • The Reveal

What happened. The board proceeded, recorded the absence, and applied. The derogation was granted in nine days, with a sunset of three years and a requirement that any deputy be appointed in writing.

Then something nobody predicted: the inspectorate's reply quoted article 9 and noted, in a footnote, that it had received no application under that article since 1961. Four other port authorities wrote within a month asking for the same derogation. None of them had known they might need one, and all four had been holding meetings in breach of it for decades.

One question. You do not have to answer it out loud.

The board asked a question about one meeting. Why did four other ports change?

Part 12 • Landing ♦ all three lines

12A • Recycle — fifteen items

1. It is essential that he _____ present. *(one word)*
2. The regulation requires that the vessel _____ . *(two words)*
3. We recommend that the board _____ a derogation. *(one word)*
4. It is proposed that article 9 _____ amended. *(one word)*
5. _____ he to attend remotely, the article would be satisfied. *(one word)*
6. _____ impossible, the meeting shall be adjourned. *(three words)*
7. _____ thought that this is a formality. *(two words)*
8. Attendance is _____ under the amendment and _____ under article 9. *(two words — one each)*
9. A deputy is _____, though not required. *(one word)*
10. The regime begins _____ . *(three words)*
11. _____ . *(four words — the opening of a resolution)*
12. _____ . *(six words — the disclaimer nobody believes)*
13. The inspectorate will _____ a written application. *(two words)*
14. Somebody must _____ that the minute is signed. *(three words)*
15. All parties agreed to _____ the sunset date. *(two words)*

12B • Consolidate — one task, everything in it

Write 150 words of minute, containing two subjunctives, one inverted conditional and one procedural formula. Mark what licenses each subjunctive.

12C • Can-do, with evidence

☐ I can form and use the mandative subjunctive. **Evidence:** 3H, 8D ☐ I can tell a requirement from a recommendation in formal text. **Evidence:** 5E, 10B ☐ I can hold a high register across a paragraph. **Evidence:** 9B, 8D ☐ I can say a formula flat and know what stressing it does. **Evidence:** 7C

12D • Replay

Record 0C again. **Compare.** Was the rule you stated the first time actually a rule?

12E • Glossary — fifty items, as a map

THE RULE · mandate · directive · stipulation · protocol **THE ESCAPE** · derogation · exemption
THE CHECKING · compliance · inspectorate · accreditation **THE MEETING** · quorum ·
resolution · ratification **WHAT A BOARD RUNS ON** · due process · the chair's ruling · a point
of order · a binding undertaking · the minimum standard **THE PAPERWORK** · a formal
requirement · with immediate effect · subject to approval · in accordance with · an inspection
regime **WHAT PEOPLE DO WITH RULES** · put forward · carry out · abide by · insist on · call
for · see to it **RUNNING THE ROOM** · the chair rules that · I move that · be it resolved **THE**
ADJECTIVES · essential · imperative · vital · requisite · mandatory · obligatory · advisable ·
desirable **THE FRAMES** · it is essential that · it is imperative that · we recommend that · the
regulation requires that · lest it be · were it to · should it prove · it is proposed that **THE**
DISCLAIMERS · be that as it may · far be it from me · come what may

12F • Next

Unit 6 • Can you agree and disagree at once?